

Court No. - 21

Case :- WRIT - C No. - 57073 of 2012

Petitioner :- Shri Ramchander Straw Products Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Sri Nripendra Mishra, learned counsel for the respondent Nos. 3 and 4, the case is directed to be put-up as fresh on 7th November, 2012.

Order Date :- 1.11.2012

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

It is submitted by Shri B.C. Rai, learned counsel for the petitioner that the petitioner opted for pre-payment meter, and therefore, the demand of Additional Security from the petitioner under the provisions of sub-section (2) of Section 47 of the Electricity Act, 2003, is illegal in view of the provisions contained in sub-section (5) of Section 47 of the said Act.

It is further submitted that the provisions contained in sub-clause (1) of Clause 4.20 of the Electricity Supply Code, 2005 is ultra-vires sub-section (5) of Section 47 of the Electricity Act, 2003.

It is further submitted that the Regulations in regard to the Security as contemplated in clause (v) of sub-section (2) of Section 181 of the Electricity Act, 2003 have not so far been framed.

The learned counsel for the petitioner further refers to the provisions contained in Section 174 of the aforesaid Act, which gives overriding effect to the provisions of the said Act.

It is also submitted that the controversy involved in the present Writ Petition is also the subject-matter of *Civil Misc. Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others)* and other connected Writ Petitions wherein Interim Orders have been passed.

Shri Nripendra Mishra, learned counsel for the respondent nos. 3 and 4 does not dispute that the controversy involved in the present Writ Petition is also the subject-matter of the aforesaid *Civil Misc. Writ Petition No. 51844 of 2009* and other connected Writ Petitions wherein Interim Orders have been passed.

In view of the above, we proceed to pass similar order in the present Writ Petition.

Connect and list with *Civil Misc. Writ Petition No. 51844 of 2009*.

Issue notice pending admission.

Notice on behalf of the respondent no. 1 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos.3 and 4 has been accepted by Shri

Nripendra Mishra.

Notice on behalf of the respondent no. 2 has been accepted by Shri A.N. Singh, learned counsel for the said respondent.

Therefore, no notice need be sent to the respondents.

Learned counsel for the respondents may file their Counter Affidavits within three weeks.

Rejoinder Affidavit may be filed within two weeks thereafter.

List alongwith connected Civil Misc. Writ Petition No. 51844 of 2009 after the expiry of the aforesaid period.

In view of the Interim Order, granted in the aforesaid *Civil Misc. Writ Petition No. 51844 of 2009* and other connected Writ Petitions, it is provided that until further orders of this Court, the respondents will not demand the Additional Security, as mentioned in the Communication dated 4.10.2012 (Annexure 1 to the Writ Petition), provided the petitioner gives an undertaking on Affidavit before the Respondent No.4 within six weeks from today that in case of failure of the Writ Petition, the Additional Security as demanded would be furnished by the petitioner.

It is made clear that this Order is being passed without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

Order Date :- 7.11.2012

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Court No. - 3

Case :- WRIT - C No. - 57073 of 2012

Petitioner :- Shri Ramchander Straw Products Ltd.

Respondent :- State of U.P. and Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Abhay Nitin Singh,Nripendra Mishra

Hon'ble Siddhartha Varma,J.

Hon'ble Arun Kumar Singh Deshwal,J.

List this case on 10.7.2023 peremptorily.

Order Date :- 3.7.2023

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(Arun Kumar Singh Deshwal,J.) (Siddhartha Varma,J.)